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Professional Discretion and Accountability in the Welfare State

ANDERS MOLANDER, HARALD GRIMEN¹ & ERIK ODDVAR ERIKSEN

ABSTRACT *The discretionary powers of welfare state professionals are in tension with the requirements of the democratic Rechtsstaat. Extensive use of discretion can threaten the principles of the rule of law and relinquish democratic control over the implementation of laws and policies. These two tensions are in principle ineradicable. But does this also mean that they are impossible to come to grips with? Are there measures that may ease these tensions? We introduce an understanding of discretion that adds an epistemic dimension (discretion as a mode of reasoning) to the common structural understanding of discretion (an area of judgment and decision). Accordingly we distinguish between structural and epistemic measures of accountability. The aim of the former is to constrain discretionary spaces or the behaviour within them while the aim of the latter is to improve the quality of discretionary reasoning. The focus in this article is on epistemic measures that are internally related to the main characteristic of accountability, namely justified use of discretionary power.*

What characterizes many welfare-state arrangements is that they confer discretionary powers upon professionals in their roles as ‘street-level bureaucrats’.² Professionals then act as gatekeepers, deciding who gets what, when, and how. This fact has generated its share of criticism.³ The discretionary powers of welfare-state professionals are troublesome for two main reasons. First, there is a tension between discretion and the formal demands of *the rule of law*. Extensive use of discretion in the application of law can threaten the principles of predictability, legality and equal treatment. Second, there is a tension between discretion and democratic control. Discretion is the *black hole of democracy* — to borrow Bo Rothstein’s metaphor.⁴ Entrusting street-level bureaucrats with extensive discretionary powers is by definition almost equal to relinquishing democratic control over these final steps.

There is, of course, a lot of sloppy discretionary work. But that is not our point and not what basically makes discretion problematic from the point of view of rule of law and democracy. The two tensions are intrinsic and cannot be removed, only ameliorated. They follow from the very nature of discretion as a judgmental and decisional activity and can appear even if we presuppose that the activity is performed in a conscientious manner.⁵

Our guiding idea is that discretion has both a structural and an epistemic aspect. On the one hand it designates a space where an agent has the autonomy to judge, decide and act according to his own judgment. In this sense discretion is an ‘opportunity-concept’. On the other hand it designates the kind of reasoning that results in conclusions about what to do under conditions of indeterminacy. In this sense it is an ‘exercise-concept’.⁶

This distinction between discretionary space and discretionary reasoning is crucial in any discussion about on how to handle the problems of discretion.

We start by clarifying the role of professional discretion in the welfare state (§1) and the two normative tensions it creates (§2). Then we introduce our two-sided concept of discretion (§3), relate it to the concept of accountability (§4) and discuss different accountability measures (§5). Although welfare programs can be made less conditional, i.e. based on means testing and involving behavioural requirements, welfare states cannot do without discretion insofar as they distribute goods and services according to needs and this requires taking into account an array of individual and situational circumstances. And if the problems of discretion are inherent in the use of discretion, the only way to handle them is to try to alleviate them. We suggest that this can be done by measures of accountability. When someone is delegated discretionary powers, he is charged with deciding and acting in a certain area under the condition that he can be held accountable. This condition is again based on the assumption that discretionary judgments are not just whimsies but justified judgments. Accountability entails essentially the obligation to *justify*. Justifications can be good or bad, and those who can demand justifications, are not entitled to get bad justifications. Thus the main characteristic of accountability is the *quality of the arguments* or the *quality of justifications* that the one who has a right to ask questions is entitled to get as an answer. Measures of accountability are measures to ensure that discretionary power is used in a reasoned and justifiable manner. In this article we distinguish between *structural* and *epistemic measures*. Structural measures constrain discretionary spaces and behaviour in such spaces, while epistemic measures aim to improve the conditions for and the quality of reasoning in such spaces. Structural measures specify what holders of discretionary power are accountable for and they may have epistemic effects, especially when combined with review procedures. The primary aim of structural measures is, however, control rather than good reasons. The class of epistemic measures is basic in the sense that it is directly related to the justifiability of discretionary judgments, actions and decisions. We outline five subclasses of such measures that in different ways may improve discretionary reasoning and make it more reliable and trustworthy. The list is not exhaustive and the borders between the subclasses — as well as between structural and epistemic measures — are not clear cut. Nevertheless, it illustrates an approach to the problems of professional discretion connected to the public provision of goods and services that we think is worth pursuing.

1. Social Rights and Professional Discretion

A defining feature of the welfare state is that it provides a certain range of goods and services to its citizens as a matter of right.⁷ However, it is often difficult to specify clearly the criteria for who has a legitimate claim on what. Some social rights are ‘discretionary rights’ that are mediated through professionals’ judgments.⁸ The scope for discretion is even larger when political goals or states are to be realized through public intervention. Sometimes rights and goal-attainment are mixed, such as when social assistance is both a right, given certain circumstances, and a means to enable the receiver to become self-sufficient; and when, in addition, it is possible to make the receipt of the benefit conditional on certain behavioural requirements.⁹

Logically, the formulation of a right has three parts: (a) a description of or reference to the holder of the right; b) a description of or reference to the holder(s) of the corresponding duties; and (c) an entitlement clause, which specifies the content to which the right-holder has a legitimate claim and the duty holders are obliged to provide.

For many social rights it can be difficult to determine who satisfies the eligibility criteria. In such cases discretion must be used to determine who is and who is not eligible. Moreover, some social rights have weakly specified entitlement clauses. It is not clear to what one is entitled when one has a right to X. Hence, it is not clear to what public institutions have a duty when they have a duty to provide X. When a right's entitlement clause is weakly specified, exactly what the right holder is entitled to and what public institutions have a duty to provide must be determined by discretion.

We can distinguish between at least three types of social rights:

1. Rights that grant the same welfare benefit to everybody who is eligible to a certain, unambiguously specified status for which most people, sooner or later, are eligible. An example is old age pension, which everybody in Norway, for example, gets at the age of 67. Rights of this type are universal and unconditional and do not involve the use of discretion.
2. Rights that grant the same welfare benefit to everybody who is eligible to claim a specific status, as determined by their situation. The disability pension according to the Norwegian Security Act is an example. A person is eligible for a disability benefit if his or her earning ability is permanently impaired by at least 50 per cent due to illness, injury or defect. Here, quite a lot of discretion may be involved in determining whether someone is eligible. However, once this has been determined, it is clear to what the person is entitled.
3. Rights that grant differentiated welfare benefits and services to people who are eligible for a certain status. In the two first kinds of social rights, everybody eligible to claim a certain status is entitled to the same benefit. In this case, however, what eligible persons are entitled to receive may differ according to need. For example, in the case of social assistance, a lot of discretion may be involved both in deciding who should receive it and to what they are entitled. Another clear example of a right that is discretionary with regard both to facts (who) and consequences (what) is the right to special education according to the Norwegian Act relating to Primary and Secondary Education (the Education Act).¹⁰

To sum up, when professionals act as gatekeepers in the welfare state, social rights function as allocation rules with the following 'if-then' structure:

Rule R: If some individual *I*, who satisfies certain background conditions *B*, displays characteristics *K* in circumstances *C*, then an individual *O*, who occupies official position *P*, should do *T* to or for individual *I*.¹¹

K refers to the personal characteristics of the client or claimant (e.g. age, disease or disability), *C* to his or her various non-personal circumstances (e.g. unemployment, parental responsibility or housing situation), and *B* to the background conditions he or she needs to meet (e.g. citizenship, residency, payments). *T* is the treatment, which consists in providing or not providing a legally-entrenched entitlement. The less determinate the eligibility criteria and entitlement clauses, the more space there is for discretion.

To get rid of discretion, one has to make clearer rules for who is entitled to what and design efficient review mechanisms. However, for many of the rights to receive benefits and especially to receive services, it is simply not possible to specify general rules in such a way that entitlement in particular cases can be a matter of subsumption. It has also been argued, that discretion serves a good end; namely, *individualized treatment*.¹² It ensures proper examination and treatment of individual cases because it permits professionals to consider what is particular and unique. Different persons may have different needs; thus, discretionary reasoning is necessary for flexible and individualized treatment.

2. Two Normative Tensions

Even though it can be argued that discretion is unavoidable or even desirable in a system of social rights, the professional gatekeepers' discretionary judgments concerning who is entitled to what create two kinds of normative problems: a tension between discretion and principles of rule of law, and a tension between discretion and democratic authorization. We shall discuss these tensions in turn, but let us start by referring to a case study that highlights the troubles of discretion.¹³

A Case Study

In a Norwegian study, 360 general practitioners (GPs) were asked to assess whether two 'applicants' (vignettes) satisfied the medical eligibility criteria for disability pension.¹⁴ There were three interesting results. First, the assessments revealed great variation. Four out of ten GPs concluded that vignette A fulfilled the eligibility criteria, while three out of ten came to the opposite conclusion. For vignette B, the results were reversed. For both vignettes, three out of ten were unable to answer yes or no due to uncertainty.¹⁵ Second, the analysis revealed that the variations in judgments were correlated with indicators of the GPs' personal values and moral standards. The stronger the GP's expressed scepticism towards the disability pension, the more restrictive their interpretation of the medical eligibility criteria. Third, an examination of the GPs' comments on justifications of their decisions revealed serious variations in their interpretation and understanding of identical information in two vignettes.

The Rule of Law

According to the idea of the *Rechtsstaat*, political authorities should rule by and be subject to law. There are three central principles of the rule of law.¹⁶ First, the enforcement of laws should be predictable. Citizens should be treated in accordance with general laws, making their legal standing — their rights and duties — predictable. However, discretion is a source of variation, and extensive practice of discretion can create unpredictability in law enforcement. Second, people's actions and claims should be judged according to valid law. Extensive practice of discretion can threaten this principle, since extra-legal factors (e.g. personal moral values) can influence discretionary reasoning. Third, the formal principle of justice demands that equal cases should be treated equally and unequal cases unequally. Professional discretion in the welfare state

can lead to both unjustified unequal treatment and unjustified equal treatment, i.e. where factually, morally or legally similar cases are treated differently, or where cases that are different are treated equally.

Variations in judgments, such as those mentioned in the case study, emanate from the very nature of discretionary reasoning. Even fully rational exercisers of discretion, motivated purely by good reasons, can reach different conclusions on the question of who should have what when their decisions are made according to a rule like Rule R above. The tension between professional discretion and the principles of the rule of law is therefore ineradicable.

Democracy's Black Hole

In their role as street-level bureaucrats, professionals are the final link in the chain of democratic governance. Here, citizens meet democratically enacted laws and measures as they function on the daily operative level. No legislator can pre-program the outcome of its acts. Instead, a complicated system of delegation to various administrative bodies on various levels must be employed. However, when street-level bureaucrats in the welfare state make decisions through extensive use of discretion, it is difficult to control what they are doing and to hold them accountable.

This tension between democracy and professional discretion has been called 'democracy's black hole'.¹⁷ To entrust extensive discretionary powers to those in charge of the final step of implementing laws or policies is to relinquish democratic control. Professionals' judgments not only vary but the variations can be attributed to their own values and moral convictions, as the mentioned case study showed. Judgments that affect the welfare of citizens introduce premises for decision-making that are not authorized by the legislator. It becomes a matter for the gatekeepers to judge the nature of each case against standards that are open for interpretation. In this regard, they exercise 'political' influence. As Rothstein puts it: 'It is the sum of their actions which constitutes the public program. And as to whether these actions reflect the objectives laid down by the democratically constituted organs — this must be regarded as an open question.'¹⁸ Like the tension between the principles of the rule of law and discretion, the democratic problem is rooted in the fact that welfare state arrangements often require the professionals to fill in the loopholes in vague 'if-then' clauses.

3. Discretion and Reason Giving

Discretion is difficult to predict and control. The outcomes may vary across time, space, and persons. The same case can be judged differently at different times, in different situations, and by different persons — even if nothing has changed in the case itself, and even if the case has been handled in a competent, thorough, and conscientious manner. Whether the lawgiver 'express provision for discretion in the law when they enact it'¹⁹ is not what the problem of discretion is about. There is simply a trade-off between welfare rights on the one hand, and the demands of the rule of law and democratic authorization on the other. If a democratic lawgiver wants to issue welfare rights he cannot dispense with the costs of discretion all together. Only for universal and unconditional social rights is it possible to specify the components in *Rule R* in such a way that entitlement

can be considered as a matter of subsumption. As long as there is a need for individualized treatment, rights must leave a space open for discretionary judgments. If the use of discretion is unavoidable or even desirable, how can it be qualified, and how to ensure that citizens do not become subject to arbitrary power or domination?²⁰ To address this question, we have to clarify the concept of discretion.

As for the concept of discretion, we can differentiate between two aspects. On the one hand, it refers to an area where one can choose between permitted alternatives of action on the basis of one's own judgments.²¹ On the other hand, it refers to a cognitive activity, a kind of reasoning that results in judgments about what to do under circumstances of indeterminacy. Discretionary reasoning is practical reasoning *with weak warrants* or rules of inference.²² The force of a strong warrant approaches the force of a rule of deduction in logic. A weak warrant only mentions issues which ought to be considered in the process of reasoning. The two aspects of discretion represent a distinction between a *structural* and an *epistemic* understanding of discretion.²³ This distinction is often overlooked.²⁴ However, from a normative point of view, the latter aspect is fundamental, since the delegation of discretionary powers is based on the epistemic assumption that the entrusted actor is capable of passing reasoned judgments.

Let us return to the example of a physician who examines a patient to determine whether the patient is eligible for a disability pension. In passing his or her discretionary judgement, the physician raises validity claims;²⁵ the diagnosis raises a claim to truth (for example, that the patient suffers from serious arthritis); the prognosis also raises a claim to truth (that the patient has lost more than 50 per cent of his future ability to earn a decent income); and the legal advice raises a claim to normative rightness (i.e. the patient should be eligible for disability pension). By making such claims, the physician also claims to express his or her sincere opinions, i.e. the physician's best judgment, or the judgment he or she finds most convincing. This is a claim to truthfulness or sincerity. The diagnosis, prognosis and legal advice are all defeasible: other physicians can reach other conclusions if they re-examine the patient. Lawyers, for their part, can also conclude differently, if they re-examine the bearing of statutes or the precedents for the case. If the patient or state authorities appeal the decisions, physicians and lawyers must be prepared to publicly defend their judgments. This view of discretion has some important consequences.

The *first* consequence is that concepts describing what it is to practice discretion are concepts that belong to a theory of argumentation. 'Best judgment' is an argumentative concept. One judgment is better than another one if it is supported by better arguments. 'This is X's best judgment' does not mean 'This is what X likes best,' but 'This is what X believes is supported by the best arguments.' When someone is entrusted with discretion, good arguments are what are expected from her, even if discretionary reasoning is practiced in situations of indeterminacy.

The *second* consequence follows from the fact that the obligation to provide justifications is an obligation to others, e.g. to delegating authorities or affected parties. This puts constraints on the kind of reasons that can be used to justify discretionary judgments, decisions and actions. The reasons must be public reasons. It is, however, often explicitly said that discretionary judgments express tacit knowledge, intuition, holistic thinking, bodily sensibilities, receptiveness and many other things. Such factors, at best, generate non-public reasons, i.e. reasons that cannot be assessed by others. Intuition and special sensibilities may be important, but they do not *per se* provide the kinds of reasons that

must be used to justify discretionary judgments by professionals in public roles. Professionals are granted discretionary powers on the basis of certified knowledge, and they are expected to justify their decisions by reference to this knowledge as well as to laws and generally accepted principles.

The *third* consequence is that we can make sense of why someone can be entrusted with discretionary powers. It is difficult to understand why someone ought to be entrusted with discretion if a discretionary space is only a license to do what one wants, but it is comprehensible if holders of discretionary powers incur an obligation to justify their defeasible judgments by public reasons. It is the fact that discretionary judgments raise defeasible but defensible validity claims that justify the entrustment of such powers to, for example, officials and professionals in a modern society. If A has discretion over X, he or she is entrusted to make decisions about X according to his best judgment. This implies a demand for accountability.

4. Accountability and Justification

Accountability is a three-fold predicate: someone is accountable to someone else with respect to something. An agent with discretionary power is accountable *to* the principal who has entrusted him with this power *for* the way he carries out his responsibilities.²⁶ In common usage, ‘accountability’ is associated with the process of being called ‘to account’ for what one does or has done.²⁷ The closest synonym is ‘answerability,’ which ‘indicates that being accountable to somebody implies the obligation to respond to nasty questions, and vice versa, that holding somebody accountable implies the opportunity to ask uncomfortable questions’.²⁸ To be accountable in this sense does not only mean that one may be asked to inform about one’s judgment, decisions and actions but also to justify them. The currency of accountability is good reasons and the basic meaning of accountability is the following:

- (a) A is accountable to B if A has a duty to justify his judgments, decisions and actions to B.

A’s duty to justify his judgments, decisions and actions stem from B’s right to demand justification, thus:

- (b) A has a duty to justify his decisions, judgments and actions to B because B has a right to demand such justifications.

However, accountability cannot be understood as a purely discursive relation between the accountable and accounting parties. It implies more than the interchange of questioning and answering. ‘Agents must not only be “called” to account; they must also be “held” to account’.²⁹ Accountability demands reactions to misconduct; otherwise, it deteriorates to reporting.³⁰ Reporting differs from accountability also in another way: It does not necessarily imply argumentative justification of judgments, decisions or actions; reports can be purely descriptive. In epistemic terms, there is thus a crucial difference between reporting and justifying judgments, decisions and actions. There can be good reports of bad actions, for instance. The core of good reporting is to provide adequate descriptions, while the core of accountability is good reasons. It designates ‘a relationship between an actor and a forum, in which the actor has an obligation to explain and to

justify his or her conduct, the forum can pose questions and pass judgment, and the actor may face consequences'.³¹ Without accountability there would be no control of what is going on in discretionary spaces. Its aim is to assure that agents take their responsibilities seriously and act in a way that is publicly justifiable.

5. Accountability Measures

The entrustment of discretionary powers is essentially connected to the demand for justification and to the expectation that those who are granted such powers have the will and the ability to justify their judgments, decisions and actions. If A has discretionary power over X, he is under an obligation to justify his judgments, decisions and actions with reasons which others can understand, assess, accept or reject, and he can be sanctioned. This is what makes the difference between discretionary power, delegated to advance certain aims, and arbitrary power.³²

Accountability measures are devices for making holders of discretionary power accountable. From our analysis of discretion follows that there should be two ways of making the use of professional discretion more accountable: by structural measures targeting discretionary spaces or by epistemic measures targeting discretionary reasoning. The main aim of structural measures is to restrain or narrow such discretionary spaces or to constrain the actions of persons who operate in discretionary spaces, while the main aim of epistemic measures is to improve the quality of discretionary judgments by improving the reasoning process or the conditions for reasoning. The distinction is, of course, rough. Structural measures are mainly a matter of control but may have epistemic effects. Epistemic measures are internally related to reason giving, but may require matching structural measures. Review procedures in their turn are a borderline case. Even though they are structural measures, they can compel persons with discretion to argue better and to work more conscientiously. They thus have a potential to improve the quality of discretionary reasoning.

Rights and the specification of rules belong to the class of structural measures. Rights provide at least three possible strategies for constraining discretionary spaces. First, rights may be introduced where there earlier were no rights. Second, one may try to make discretionary rights less discretionary by clarifying their eligibility criteria and entitlement clauses. Third, one can try to replace discretionary rights with non-discretionary rights. It has, for instance, been suggested that the discretionary right to social assistance could be replaced by a non-discretionary, unconditional right to a basic income.³³

Rights constrain discretionary spaces by specifying and clarifying entitlements and obligations. They also immunize entitlements by lifting them out of the political or moral agenda. Non-discretionary rights do this to a much higher degree than discretionary rights that often carry contested moral and political values into their cores. When entitlements and obligations are clearly specified, right-holders have the possibility to complain, to appeal and eventually to bring cases to court if they disagree with decisions. An effect of introducing rights and making discretionary rights less discretionary is thus that persons with discretionary powers can be compelled to justify their judgments, decisions and actions. Although they are a structural kind of measure, rights can have epistemic effects.

Such a system is, however, dependent on the clients' ability to claim their rights. Many investigations suggest that those who have few resources and who need social benefits and services most are the least capable of doing that.³⁴

It is important to dispel the illusion that the increased use of rights to secure benefits and services to the citizens will automatically reduce or remove discretion. Increased use of rights does not by itself make discretion superfluous. As we have shown, everything depends on what kinds of rights are used: discretionary or non-discretionary. In principle, clearer material rules could compensate for the discretionary character of many social rights, at least when it is possible to specify the need in question in such a way that entitlement could be considered as matter of subsumption. It is, however, an open empirical issue as to how far it is possible to 'tidy up' discretionary social rights, especially with regard to services.

But even in a system with well-specified entitlements, decision-makers would have to relate to many situational and personal matters, which demand flexibility of judgment and decision. Economic support and other kinds of help to disabled persons is a case in point. The same amount of money can have very different values for different persons, depending on the nature of their functional impairment, and not least on where they live. By this we do not mean that stricter entitlement rules should not be used as a structural measure of accountability, but there are limits to what degree such rules can be specified, and there are good reasons for formulating the entitlements of persons in need as discretionary rights.

Alongside rights and specification of rules there are other kinds of structural measures that do not necessarily delimit the space of discretion but target the use of discretionary powers, for example monitoring and review procedures coupled with sanctions, procedures for handling cases and measures that divide discretionary spaces among several actors in order to reduce the power of each single holder of discretionary power. In this article, however, we shall focus on some specific epistemic measures. This class of measures has received less interest than structural measures, just as discretionary reasoning has been less discussed than the discretionary space.

The point of epistemic measures is to improve the quality of discretionary reasoning by improving either the process or the conditions of reasoning. They are directed at discretionary reasoning, not at discretionary spaces. Connected to epistemic measures is a special kind of reaction. Epistemic reactions are based on the principle that those who have not reasoned well can or must correct their mistakes by better reasoning. They may be obliged to defend themselves at certain critical forums and might have to think carefully about the arguments they could use to defend their decisions. If their defences do not pass the argumentative test, they will have to change their opinions.

We suggest a broad distinction between the five main subclasses of epistemic measures with different targets: *formative*, *supportive*, *motivational*, *deliberative* and *participatory*.

5.1. *Formative Measures*

Formative measures aim at inculcating specific kinds of knowledge, modes of thinking, values and norms in persons with discretionary powers. The most important of the formative measures are of course the formalized educational programs, which transfer the knowledge, norms and values that are the basis for obtaining authorization to practice as a professional. The basic idea behind an educational program seen as an

accountability measure is that different persons with the same formal education will judge, decide and act in a more informed, uniform and consistent manner than persons who lack a common formal education; similar formal education is expected to raise the quality of judgments and contribute to less variability in judgments and decisions across persons. It is, of course, an empirical question of whether or not this is so.

The massive influence of heuristics with their concomitant cognitive biases on human reasoning is well-documented.³⁵ Research seems to suggest that neither more knowledge nor more experience is particularly efficient in itself with regard to countering the influence of the heuristics. Both lay people and experts seem to be under the influence of the heuristics, even if they know about them. But what does seem to work, in some cases at least, is teaching/instructing people to think and reflect in certain ways about how they are thinking and then explicitly and consciously to adopt ways of thinking that can act as counter-strategies to their cognitive biases.³⁶ Some cognitive biases can be countered by learning to apply certain strategies of thinking in a systematic and consistent manner. This is a typical issue of formation. By teaching such strategies one aims at improving the quality of discretionary reasoning by forming the mind-sets of persons with discretionary powers.

5.2. Supportive Measures

The targets of supportive measures of accountability are the decision-situations of persons with discretionary powers. Various kinds of decision-support systems belong to this subclass. Research seems to show that when decision-makers can rely on different kinds of decision-support, they are liable to make fewer mistakes and to judge, decide and act in a more consistent manner.³⁷ Evidence-based professional practice can be seen as one kind of such a decision-support system, and will be our prime example.

A very much-quoted definition of evidence based practice says: 'Evidence-based medicine is the conscientious, explicit, and judicious use of current best evidence in making decisions about the care of individual patients [. . .]. [It] means integrating individual clinical expertise with the best available external clinical evidence from systematic research.'³⁸ Some authors use wider definitions, and others use narrower definitions, but the common core is the idea that different kinds of knowledge can be ranked according to scientific merit, strength of evidence or methodological quality, especially when applied to knowledge about the effects of interventions (i.e. 'what works'). All defenders and practitioners of evidence-basing operate with what can be called an *evidence hierarchy*. At the top of this hierarchy is evidence from studies with RCT-design or meta-analyses of studies with RCT-design. Evidence from expert committee reports or opinions and from the clinical experience of respected authorities is placed at the bottom.

Even though the evidence hierarchy does not always have exactly the same form, it is defended roughly in the same way by all defenders of evidence-based practice. Essential to the approach are meta-analyses of existing studies that attempt to find out if there is evidence that an intervention actually works or not. A certain kind of *decision procedure* is also essential to evidence-basing. This procedure may have many or only a few steps; either way it starts with defining the problem and ends with the formulation of an intervention based on most relevant and applicable findings, or what is often called 'the best available evidence'. The best available evidence is found when the search for

evidence is conducted downwards from the top of the hierarchy. However, there does not seem to be agreement about how evidence-basing should relate to clinical judgments. Some defenders of the approach want it to enrich clinical judgments, while others see it as an alternative or replacement for clinical judgment (but they are rather few).

Evidence-basing targets the decision-making situation of professionals and aims to supply decision-makers with the most updated and reliable knowledge about which interventions work and which do not work. It has spread very rapidly from medicine to many other fields, such as teaching and social work.³⁹ Therefore it is important to clarify when evidence-basing can be suitable as a measure of accountability and when it should be avoided. Studies documenting ‘what works’ are not very helpful when professionals have to fill in the loopholes in ‘if-then’ clauses regulating who is entitled to what. Evidence-based reasoning answers clinical questions, but it is disputed as to what extent it can fill in loopholes in hypothetical imperatives.

5.3. *Motivational Measures*

Motivational measures target the motivational structure or composition of actors with discretionary powers. What separates them from structural measures is that motivational measures do not take the form of external constraints on discretionary spaces or on the behaviour of persons with discretionary powers. Motivational measures function as incentives and are thus ‘pull’ mechanisms, not constraints. Their point is simply to give such actors sufficient incentives to do a good job — in this case, to carry out conscientious discretionary reasoning. As shown by Thaler and Sunstein, decision-makers can be nudged to act in a more reflective and responsible way by arranging the decision-situation in a certain way.⁴⁰ But incentive structures can also work in the opposite direction and this makes them very important when it comes to accountability. For example, studies have shown that pay-for-performance schemes do not work well in professional settings, such as in health care and education, and may even have perverse effects.⁴¹ The reason is the so-called ‘multi-task problem’.⁴² It is hard to measure ‘health care’ and ‘education’ and when doctors or teachers (or their hospitals or schools) are rewarded for certain targets, they may direct their attention to these targets to the detriment of tasks that are not easily quantifiable and rewarded. This may result in substandard work and in the worst case in so-called ‘gaming’ which means that doctors or teachers do not only conform to the target but (some) try to benefit as much as possible from the incentive scheme, even by directly misusing it.⁴³ How an incentive scheme works is therefore dependent on the agents’ motivations, i.e. to what extent they are intrinsic or extrinsic, other-regarding or self-interested. Furthermore, an incentive scheme can also influence motivations. Economic incentives may crowd out intrinsic motivation and eventually turn altruistic ‘knights’ into self-interested ‘knaves’. However, motivations are always mixed and the design of incentive schemes for professional work must take this fact into account.⁴⁴

5.4. *Deliberative Measures*

Deliberative epistemic measures target the arguments of persons with discretionary powers. Deliberation consists of weighing reasons for and against a choice and takes place both internally — in the heads of individuals, and externally — in collective

settings. Similarly, deliberative accountability measures can be divided into two specific types.⁴⁵ The first of these tries to influence the deliberation of individual decision-makers by impelling them to anticipate a situation where they would have to justify their judgments and decisions. For example, a random sample of cases could regularly be selected for reviewing their decisions in a forum, either anonymously or not. The assumption is that the mere knowledge of the possibility of being exposed to a review and discussion would lead decision-makers to reason as if they had to justify their actions to an audience.⁴⁶ The probability of being selected for review that is required for this mechanism to work is, however, uncertain.⁴⁷ The other type of deliberative measures is of an external-collective kind and aims to establish *arenas* where arguments can be examined in critical discussions, progressing from arenas with narrow audiences to arenas with wide audiences. Below we will focus on this type of deliberative measures.

5.4.1. Deliberation with Narrow Audiences

One example of discursive arenas with narrow audiences is collegial bodies. Collegiality is a way of reaching decisions through deliberation among equals.⁴⁸ In collegial bodies a discursive procedure is used to examine whether conduct complies with norms and ethical codes of the profession — to handle malpractice — and also to clarify ‘hard’ cases. However, in these bodies professionals are only responsible to their peers.

Court-like institutions in the welfare administration are another example. A court-like institution contains some of the important characteristics of a proper court, such as procedures for a fair trial, rules for the inclusion of affected parties, an autonomy vis-à-vis the administration, and the possibility of appealing decisions to higher instances.⁴⁹ Court-like institutions can be developed into full-fledged special courts.⁵⁰ One can also imagine even more pure deliberative bodies that do not decide upon concrete cases (or appeals) but rather discuss and reach a consensus about the decisions in prototypical but difficult cases. Ordinary citizens and/or representatives for affected parties or typical users could be included in such forums. By forming shared opinions about how rules and guidelines are to be understood, such forums can contribute to a more competent, consistent and uniform practice of discretion.

5.4.2. Deliberation with Wide Audiences

A relation of accountability between those who possess discretionary powers and those who are subjected to them also requires a broader forum, the public sphere, where decision-makers can be called to account. Here we arrive at the rock-bottom sense of accountability in a democratic *Rechtsstaat*; namely, the duty to provide justifications for judgments, decisions and actions to the citizens.

In the public sphere, professionals can be forced to relate to what citizens actually articulate concerning their experiences, opinions and problems. Through public discussions, unsolved tasks can be identified and unknown social problems can be revealed, as well as ineffective welfare programs, illegitimate paternalist practices, malpractice and so on. Thus, the public sphere has important functions for setting the standards for and monitoring how professionals practice discretion. To measure the effect of public debate and criticism on norms and practices is, however, difficult.

A major problem from a deliberative perspective is that the public sphere all too often fails to function in a deliberative way. Among other things, the phenomenon of 'media-tised' politics is well known: spectacular cases effectively sponsored by commercial news interests rather than by real and serious problems catch the eye of the public. However, proponents of deliberative theory have sought to design procedures for handling the possible deficiencies of public debate. For a number of years, James S. Fishkin has been engaged in a research program entitled 'Deliberative Polling' that seeks to encourage people to reconsider rather than confirm their views by exploring what opinions they would support if they knew more and thought more about the issues. A deliberative poll has the following design: first, a random sample responds to a survey; after that they convene together for many hours of deliberation, both in small groups and in plenary sessions, in which they can ask questions to politicians and experts and exchange competing points of view.⁵¹ In our context, this method for distilling a 'refined public opinion' could be used in connection with disputed cases and in evaluating and preparing welfare reforms.

5.5. Participatory Measures

The main characteristic of participatory measures of accountability is that these include affected or concerned parties as *decision-makers* and not only as discussants or as audiences and thus widen the class of decision-makers. Extended participation is an element in many of the deliberative measures discussed above. However, affected and concerned parties are mainly included as discussants and audiences; only rarely are they decision-makers or actors with decision-making powers. So the question is, could there be epistemic accountability measures that include affected parties as decision-makers? And, if there could, what would be the function of such measures? What would they target, and what would they yield regarding accountability and discretion?

An obvious candidate for epistemic accountability measures would be different procedures for *co-decision*. Co-decision procedures specify which concerned or affected parties must participate in the decision process before a decision is valid. They specify who has decision-making powers in particular cases. The most prominent examples of co-decision procedures are found in two-chamber parliaments where some proposals must be accepted in both chambers in order to be valid. Procedures in professional contexts, which are strongly reminiscent of co-decision procedures, are suggested by some of participants in the longstanding discussions about adequate models of the relations between healthcare staff and patients.⁵² In brief, the authors suggest that healthcare staff, together with the patients, should decide upon treatment regimes. There are parallel proposals for client participation in field-level decision making with regard to social services.⁵³

A main function of co-decision procedures as seen from the point of view of accountability is that they *de facto* introduce a demand for mutual justification into the interaction between the co-deciders. If the co-deciders must agree in order for a decision to be valid, they must convince one another about the validity of the proposed decision; otherwise there will be no decision. So it is at least imaginable that well-designed co-decision procedures can contribute to improving the quality of discretionary reasoning simply by introducing a demand for mutual justifications into a decision-making procedure. The different parties participating in the procedure must then review and

discuss one another's justifications to find out whether they are acceptable or not. In this process they may refine their arguments or change their preferences.

6. Concluding Remarks

In this article we have developed an analytic approach to the delegation of discretionary powers to professionals in the welfare state. On the one hand we have shown that discretion sits uneasily with the formal requirements of the rule of law as well as with democratic control. At the same time discretion seems to be non-eliminable as long as the welfare state distributes goods and services according to needs. Even with well-specified entitlements, gatekeepers would have to take into account many situational and personal matters, which all demand flexibility of judgment and decision. Discretionary powers thus raise tricky issues of accountability. On the other hand we have tried to get a better focus on the question of what can be done about it. This requires an adequate understanding of what discretion is. We have argued that there is an important distinction between discretionary space and discretionary reasoning. Discretion, which is often discussed in structural terms only, also has to be approached from an epistemic point of view since discretionary judgments raise validity claims. Validity claims are defeasible and must be redeemed by arguments. Thus discretion must be seen as a kind of reasoning. We have argued that this distinction must be crucial in any discussion about making discretion more accountable. Accordingly we have to distinguish between epistemic and structural measures of accountability. Any proposal for how to make discretionary judgments, decisions and actions more accountable must address both the epistemic and the structural side of discretion. In this article we have focused on some epistemic measures of accountability. To what extent they will reduce the problems of discretion is a question for empirical research.⁵⁴

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NOTES

- 1 Harald Grimen suddenly passed away in February 2011 shortly after a first draft of this paper was presented at a seminar at the Center for the Study of Professions, Oslo University College.
- 2 Michail Lipsky, *Street Level Bureaucracy: Dilemmas of the Individual in Public Services* (New York: Russell Sage Foundation, 1980).
- 3 Robert E. Goodin, *Reasons for Welfare: The Political Theory of the Welfare state* (Princeton, NJ: Princeton University Press, 1988), chapter 7.
- 4 Bo Rothstein, *Just Institutions Matter: The Moral and Political Logic of the Universal Welfare State* (Cambridge: Cambridge University Press, 1998), p. 80.
- 5 Cf. Rawls' analysis of the hazards connected with the use of theoretical and practical reason. He calls them 'the burdens of judgment' (J. Rawls, *Political Liberalism* (New York: Columbia University Press, 1993, lecture II, §2). The non-eliminable hazards which influence discretionary reasoning are 'the burdens of discretion' (see A. Molander and H. Grimen, 'Understanding professional discretion' in L. G. Svensson and J. Evetts (eds) *Sociology of Professions. Continental and Anglo-Saxon Traditions* (Gothenburg: Daidalos, 2010)).

- 6 The terms 'opportunity-' and 'exercise-concept' are borrowed from Charles Taylor, 'What's wrong with negative liberty?', in *Philosophy and the Human Sciences. Philosophical Papers 2* (Cambridge: Cambridge University Press, 1985), pp. 116–29.
- 7 Robert E. Goodin, 'Vulnerabilities and responsibilities: An ethical defense of the welfare state', *American Political Science Review* 79,3 (1985): 775–87. The classical analysis of the welfare state in terms of rights is Marshall, *Citizenship and Social Class* (Cambridge: Cambridge University Press, 1950).
- 8 T. D. Campbell 'Discretionary rights' in N. Timms and D. Watson (eds) *Philosophy in Social Work* (London: Routledge & Kegan Paul, 1978), pp. 50–79. See also Lars C. Blichner & Anders Molander, 'Mapping juridification', *European Law Journal* 14,1 (2008): 36–54 at pp. 42, 50–51.
- 9 Cf. the Norwegian Act on Social Services:
Chapter 4, §18: 'Those unable to support themselves by working or exercising financial rights are entitled to financial support. The support should aim at making the person self-supporting.'
Chapter 4, §20: 'Conditions can be stipulated for the granting of financial support, including that the recipient shall be employed in suitable tasks in his or her municipality of residence for as long as the financial support is received.'
- 10 'Pupils who either do not or are unable to benefit satisfactorily from ordinary tuition have the right to special education. In assessing what kind of tuition shall be provided, particular emphasis shall be placed on the pupil's developmental prospects. The content of the courses offered shall be such that the pupil receives adequate benefit from the tuition as a whole in relation to other pupils and in relation to educational objectives that are realistic for the pupil. Pupils who receive special education shall have the same total number of teaching hours as other pupils', in Norwegian Act relating to Primary and Secondary Education and Training, § 5-1.
- 11 Goodin 1988 op. cit., p. 186.
- 12 See Richard M. Titmuss, 'Welfare rights, law and discretion', *Political Quarterly* 42,2 (1971): 113–132; and Joel F. Handler, *The Conditions of Discretion: Autonomy, Community, and Bureaucracy* (New York: Russel Sage Foundation, 1986).
- 13 Cf. the example used by Tom Bingham, *The Rule of Law* (London: Allen Lane, 2010), pp. 49–50.
- 14 For a patient to be eligible for disability pension, the GP must, according to the Norwegian Social Security System, confirm his or her illness/condition. The GP must give a 'valid' diagnosis of the patient's medical condition and assess whether his or her capacity to earn a future decent living has been permanently reduced by at least 50 per cent. The GP must also assess whether sufficient medical treatment and vocational rehabilitation has been tried. This act is based on the presumption that GPs can, on the basis of their theoretical knowledge and medical experience, assess the medical condition of patients and evaluate whether their earning capacity has been permanently reduced. It is presupposed that they can give an objective and impartial account of the cases at hand. The role of the GP's medical statements is to justify the decisions taken by the local social security office. The medical classification of the patient's symptoms and the GP's assessments of the patients' prospective ability to work are of central importance in disability pension cases. The Norwegian Act on Social Services (in section 12-6) implicitly assumes a linear causal relation between the claimants' diseases, the severity of their impairments and the permanency of the reduction of their earning capacity
- 15 Lars Inge Terum & Trude B. Nergård, 'Medisinsk skjønn og rettstryggleik', *Tidsskrift for Den norske lægeforening* 119,15 (1999): 2192–2196; and L. I. Terum & T. B. Nergård, 'Uførepensjon og likebehandling' in A. H. Bay, B. Hvinden and C. Koren (eds) *Virker velferdsstaten?* (Oslo: Høyskoleforlaget, 2001).
- 16 For classical statements on the rule of law as a normative standard, see Friedrich A. Hayek, *The Road to Serfdom* (London: Routledge, 1944); Lon L. Fuller, *The Morality of Law* (New Haven, CT: Yale University Press, 1969); Joseph Raz, *The Authority of Law* (Oxford: Oxford University Press, 1979); and the reconsiderations by Andrei Marmor, 'The rule of law and its limits', *Law and Philosophy* 23,1 (2004): 1–43. Jeremy Waldron has recently emphasized that the legal procedures needed to match the principles of the rule of law are as central to the idea of the rule of law as the principles themselves, see J. Waldron, 'The rule of law and the importance of procedure' in J. E. Fleming (ed.) *Getting to the Rule of Law, NOMOS L* (New York: New York University Press, 2011).
- 17 Rothstein op.cit., ch. 4. See also Erik O. Eriksen, *Demokratiets sorte hull* [Democracy's Black Hole] (Oslo: Abstrakt, 2001), and Henry S. Richardson, *Democratic Autonomy: Public Reasoning About the Ends of Policy* (Oxford: Oxford University, 2002).
- 18 Rothstein op.cit., p. 80.

- 19 From Jeffrey Reiman's discussion on police discretion, 'Against police discretion: Reply to John Kleinig', *Journal of Social Philosophy* 29,1 (1998): 132–142 at p. 132.
- 20 Richardson op. cit., and Frank Lovett, *A General Theory of Domination and Justice* (Oxford University Press: Oxford, 2010).
- 21 See, for example, Kenneth C. Davis, *Discretionary Justice* (Baton Rouge, LA: Louisiana State University Press, 1969), p. 9: 'A public officer has discretion wherever the effective limits on this power leave him free to make a choice among possible courses of action or inaction.'; or Aharon Barak, *Judicial Discretion* (New Haven, CT: Yale University Press, 1989), p. 7: 'The power [. . .] given to a person with authority to choose between two or more alternatives, when each of the alternatives is lawful.' According to Ronald Dworkin's famous metaphor, discretion is like the hole in a doughnut, 'an area left open by a surrounding belt of restrictions' consisting of 'standards set by a particular authority'. See Ronald Dworkin, *Taking Rights Seriously* (Cambridge, MA: Harvard University Press, 1977), p. 32.
- 22 Molander & Grimen op. cit.
- 23 Robert Alexy, *A Theory of Constitutional Rights* (Oxford: Oxford University Press, 2001), p. 393 (Afterword to the English translation).
- 24 This is, for example, the case with Robert Goodin's seminal analysis of discretion in the welfare state. It is based on the 'limiting case' of 'complete' discretion which means 'that the person is not obliged to have, much less to give any reasons whatsoever for deciding one way rather than the other'. See Goodin 1988 op.cit., p. 198.
- 25 See Jürgen Habermas, *The Theory of Communicative Action, Volume One: Reason and the Rationalization of Society* (Boston, MA: Beacon Press, 1984), pp. 8–42.
- 26 D. D. Dunn, 'Mixing elected and nonelected officials in democratic policy making: Fundamentals of accountability and responsibility', in A. Przeworski, S. C. Stokes & B. Manin (eds) *Democracy, Accountability and Representation* (Cambridge: Cambridge University Press, 1999), pp. 298–300.
- 27 Richard Mulgan, '“Accountability”: An ever-expanding concept?', *Public Administration* 78,3 (2000): 555–572 at p. 555. See also Chapter 1 in Richard Mulgan, *Holding Power to Account. Accountability in Modern Democracies* (Houndmills: Palgrave MacMillan, 2003).
- 28 A. Schedler, 'Conceptualizing accountability', in A. Schedler, L. Daimond & M. F. Platter (eds) *The Self-Restraining State: Power and Accountability in New Democracies* (Boulder, Lynne Rienner Publishers, 1999), pp. 13–28.
- 29 Mulgan 2003 op.cit., p. 9.
- 30 Schedler op. cit., p. 16.
- 31 Mark Bovens, 'Analysing and assessing accountability: A conceptual framework', *European Law Journal* 13,4 (2007): 447–468, at p. 449.
- 32 Lovett op.cit., p. 96.
- 33 P. van Parijs (ed.), *Arguing for Basic Income: Ethical Foundations for a Radical Reform* (London: Verso, 1992).
- 34 Handler op. cit.
- 35 The classical article is Amos Tversky & Daniel Kahneman, 'Judgment under uncertainty: Heuristics and biases', *Science* 185,4157 (1974): 1124–31. See also G. Keren & K. H. Teigen, 'Yet another look at the heuristics and biases approach' in D. J. Koehler and N. Harvey (eds) *The Blackwell Handbook of Judgment & Decision Making* (Oxford: Blackwell, 2007).
- 36 Jerome Groopman, *How Doctors Think* (New York: Houghton Mifflin Company, 2008).
- 37 G. Kirkeboen, 'Decision behaviour – improving expert judgement' in T. W. Williams, K. Samset & K. J. Sunnevig (eds) *Making Essential Choices with Scant Information: Front-End Decision Making in Major Projects* (New York: Palgrave-Macmillan, 2009), pp. 169–94.
- 38 David L. Sackett, William M. C. Rosenberg, J. A. Muir Gray, R. Brian Haynes & W. Scott Richardson, 'Evidence-based medicine: What it is and what it isn't', *British Medical Journal* 312 (1996): 71–72.
- 39 Hanne Foss Hansen & Olaf Rieper, 'The evidence movement: the development and consequences of methodologies in review practices', *Evaluation* 15,2 (2009): 141–163.
- 40 Richard H. Thaler & Cass R. Sunstein, *Nudge: Improving Decisions about Health, Wealth, and Happiness* (New Haven, CT: Yale University Press, 2008).
- 41 C. Lemièrre, C. H. Herbst, G. Torsvik, O. Maestad, K. Soucat & K. L. Leonard, 'Evaluating the effects of result-based financing (RBF) schemes on health workers' performance', Unpublished paper (December 2011).
- 42 Bengt Holmstrom & Paul Milgrom 'Multitask principal-agent analyses: Incentive contracts, asset ownership, and job design', *Journal of Law, Economics, & Organization* 7,3 (1991): 24–52.

- 43 In Norway hospitals are partly financed by fixed amounts of money allotted by the state according to diagnoses or diagnostic groups. Some diagnoses are expensive to treat and thus bring a significant amount of money to the hospital. Other diagnoses are not so costly and bring less money. So the temptation is great to report a larger number of expensive diagnoses than actually have been given, simply because that brings more money to the hospital. This was exactly what happened in one hospital. Somebody 'upgraded' diagnoses from one price class to higher price classes in order to get more money from the state.
- 44 Julian Le Grand, *Motivation, Agency, and Public Policy: Of Knights and Knaves, Pawns and Queens* (Oxford: Oxford University Press, 2003).
- 45 This distinction is inspired by Robert Goodin, *Reflexive Democracy* (Oxford: Oxford University Press, 2003).
- 46 G.Torsvik, A. Molander, S.Tjøtta & T. Kobbeltvedt, 'Anticipated discussion and cooperation in a social dilemma', *Rationality and Society* 23,2 (2011): 199–216.
- 47 As we already have mentioned, such review procedures exemplify that there is no clear cut border between structural and epistemic measures. The possibility of being exposed to review is first and foremost a structural measure, but may have epistemic effects. The intention of the suggested procedure here is to promote internal deliberation.
- 48 T. Parsons, 'Research with human subjects and the "professional complex" ' in T. Parsons, *Action Theory and the Human Condition* (New York: The Free Press, 1968), p. 42.
- 49 The Norwegian National Insurance Court is an example of such court-like body. Its area of competence is to make decisions about rights and duties according to the legislation of national insurance and pensions. It is a free-standing institution with expert knowledge that settles disputes between the Welfare Administration and members of the national insurance system (that is, citizens). It has precedential force, and its verdicts can be brought directly before the Court of Appeal (Asbjørn Kjønsdal & Aslak Syse, *Velferdsrett I: Grunnleggende rettigheter, rettssikkerhet og tvang* (Oslo: Gyldendal, 2008), pp. 112–113). Another Norwegian example of a court-like body is the County Boards of Child Protection and Social Welfare which handles, for example, cases where a child custody change is considered because of abuse, lack of proper care and so on. Normally, the Board consists of three members: one moderator (a lawyer), one expert and one layman. The procedural rules of this body mimic the rules of civil dispute settlements, and the aim is to increase the probability of making decisions that are in the best interest of the child. Such a board can be seen as a forum in which deliberation assumes the form of advocacy discourses on behalf of the child. See E. O. Eriksen & M. Skivenes 'Legitimeringsproblemer i barnevernet' in E. O. Eriksen op. cit., pp. 115–54.
- 50 The Norwegian legal scholar Asbjørn Kjønsdal has proposed a special court for cases related to welfare legislation. See Asbjørn Kjønsdal, 'Behovet for et felles rettslig overprøvingsorgan på velferdsrettens område — i en Sosialdomstol', *Retfærd* 3,98 (2002): 10–17.
- 51 James S. Fishkin, *When the People Speak. Deliberative Democracy and Public Consultation* (Oxford: Oxford University Press, 2009).
- 52 Ezekiel J. Emanuel & Linda L. Emanuel, 'Four models of the physician-patient relationship', *The Journal of the American Medical Association* 207,16 (1992): 2221–26.
- 53 Handler op. cit. and J. F. Handler, 'Discretion: Power, quiescence, and trust' in K. Hawkins (ed.) *The Uses of Discretion* (Oxford: Oxford University Press, 1992), pp. 331–60.
- 54 Thanks to two anonymous referees and to Kristine Bærøe, Cathrine Holst and Lars Inge Terum for helpful comments.